

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201503859	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/14/2015 5:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/14/2016	Precinct: 67		
Date/Time CV Reported Thu, 05/14/2015 12:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 05/14/2015 12:34 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBS
2. DT3 Katrina Forrester	3529	941207	NARCBBS
3. DT3 Douglas Corso	04824	936392	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SDS Jean Desir	03064	931633	NARCBBS
2. DT3 Ricardo Joseph	5406	938736	NARCBBS
3. DT3 Winston Mcdonald	04785	943545	NARCBBS
4. DT3 Ade Ajasa	00686	941326	NARCBBS
5. DT3 Albert Jackson	03573	933869	NARCBBS
6. POM Michael Kobus	02499	941226	NARCBBS
7. POM Alfred Davidson	23574	941621	NARCBBS
8. DT3 Tearle Connell	1053	932484	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Katrina Forrester	Abuse: Det. Katrina Forrester entered and searched § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . DT3 Douglas Corso	Abuse: Det. Douglas Corso entered and searched § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	D . Officer(s) Unidentified
E . DT3 Katrina Forrester	Abuse: Det. Katrina Forrester threatened to arrest § 87(2)(b)	E . Unsubstantiated
F . DT3 Katrina Forrester	Abuse: Det. Katrina Forrester refused to show a search warrant to § 87(2)(b)	F . Unsubstantiated

Case Summary

On May 14, 2015, § 87(2)(b) filed this complaint with the CCRB via email on behalf of himself and his wife, § 87(2)(b).

At approximately 5:55 a.m. on May 14, 2015, § 87(2)(b) and § 87(2)(b) were at their home, located at § 87(2)(b) in Brooklyn. With them was their infant daughter. § 87(2)(b) is a two-story building, with two apartments on each floor. There is also a separate residence in the basement. The building has two exterior, with one leading onto the first floor, and another leading directly into the basement. § 87(2)(b) heard a loud noise coming from the building's basement. When he went out into the hallway to see what was happening, he noticed a group of plainclothes officers, identified as a Brooklyn South Narcotics team, standing in the basement (**Allegation A**).

§ 87(2)(b) left the apartment to see what was happening. After he left, several officers, led by Det. Katrina Forrester and Det. Joseph Corso, entered the § 87(2)(b) apartment. The officers searched the § 87(2)(b) apartment (**Allegations B, C and D**). Det. Forrester asked § 87(2)(b) where her brother § 87(2)(b) was. § 87(2)(b) told Det. Forrester that her brother lived in the basement, but was not home at the time. Det. Forrester stated that if § 87(2)(b) did not appear, then both § 87(2)(b) and § 87(2)(b) would be arrested (**Allegation E**). § 87(2)(b) asked Det. Forrester to see a copy of any warrants that she had. Det. Forrester stated that a supervisor would show her the warrant later, but no officer ultimately showed a warrant to § 87(2)(b) (**Allegation F**).

§ 87(2)(b)'s other brother who lived on the second floor, § 87(2)(b) came downstairs and joined her in the kitchen. § 87(2)(b) and § 87(2)(b) called § 87(2)(b) and told him to come over. Once § 87(2)(b) arrived, he identified himself as the basement's occupant. A search of the basement turned up crack cocaine. § 87(2)(b) was arrested and taken into custody, while § 87(2)(b) was released.

Mediation, Civil and Criminal Histories

Mediation was offered to § 87(2)(b) and § 87(2)(b) during their sworn statements, but § 87(2)(b) rejected mediation, § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) filed a notice of claim with the comptroller's office in regards to the incident (See Board Review: Notice of Claim). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) or § 87(2)(b) (See Board Review: Civilian CCRB Histories).
- Det. Forrester has been a member of the service for nine years, and there are two substantiated CCRB allegations against her. In case #200917335, vehicle stop and frisk allegations were substantiated against her. She received instructions. This is the first case in which entry, threat of arrest, threat to notify ACS or failure to show search warrant allegations have been made against Det. Forrester.

- Det. Corso has been a member of the service for ten years and there are no substantiated CCRB allegations against him. This is the first entry allegation made against Det. Corso.
- Det. Joseph has been a member of the service for ten years and there are no substantiated CCRB allegations against him. This is the first entry allegation made against Det. Joseph.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g) [REDACTED]
[REDACTED]. Initially, she stated that five officers entered the apartment, led by a heavyset 5'6" black male carrying a bunker shield. She described the other officers as a 5'8" black male, a 5'9" white male and a bald male of indeterminate race.

§ 87(2)(b) [REDACTED] participated in a photo viewing session on August 25, 2015 (See Board Review: Photo Viewing Documents). During the photo viewing, § 87(2)(b) [REDACTED] identified Det. Connell as the first officer to enter. While Det. Connell is a black male, he is § 87(2)(b) [REDACTED]. The pre-execution plan also indicates that Det. Connell was not a part of the bunker team, and was not carrying a bunker shield during the incident. While § 87(2)(b) [REDACTED]'s brother § 87(2)(b) [REDACTED] did not witness the officers' initial entry, he stated that a total of four officers were in the apartment with § 87(2)(b) [REDACTED] when he entered. He was only able to describe three of these officers: a black female (identified as Det. Forrester), a white male and a black male. He was not able to describe these officers in detail.

The officers interviewed indicated that only Det. Forrester (a female) and Det. Corso (a white male) interacted with § 87(2)(b) [REDACTED] upstairs. Det. Forrester stated that two other officers might have accompanied them, but she did not know who they were. Sgt. Desir and Det. Corso, however, both stated that only Det. Forrester and Det. Corso went upstairs. Det. Joseph, the only black male officer who was carrying a bunker shield during the entry, denied going upstairs at any point, and denied interacting directly with § 87(2)(b) [REDACTED] at any time.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

- In her initial statement, § 87(2)(b) [REDACTED] stated that a black female officer threatened to arrest her, and refused to show a copy of the search warrant. In her photo viewing session, however, she did not attribute the threat of arrest or refusal to show search warrant allegations to any other officers during her photo viewing.

While the officers interviewed denied making any such statements to § 87(2)(b) [REDACTED] or hearing any other officer make such statements, both Det. Forrester and Det. Corso stated that Det. Forrester was the primary officer speaking to § 87(2)(b) [REDACTED] inside of the

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

● § 87(2)(g)

Allegation A –Abuse of Authority: Officers entered and searched § 87(2)(b) 2,
Basement, in Brooklyn.

It is undisputed that officers forcibly entered the basement of § 87(2)(b). The officers possessed a valid search warrant issued for the building's basement (See Board Review: Search Warrant). NY Criminal Procedure Law §690.50 states that officers may forcibly enter a location pursuant to a valid search warrant (See Board Review: Legal Reference). Since the officers possessed a valid search warrant, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B –Abuse of Authority: Det. Katrina Forrester entered and searched § 87(2)(b) [REDACTED], in Brooklyn.

Allegation C –Abuse of Authority: Det. Douglas Corso entered and searched 241 § 87(2)(b) [REDACTED] in Brooklyn.

It is undisputed that Det. Forrester and Det. Corso entered the § 87(2)(b) [REDACTED] apartment and interacted with her in the kitchen. § 87(2)(b) [REDACTED] stated that after § 87(2)(b) [REDACTED] left the apartment, she remained inside the apartment, sitting in her kitchen with the apartment’s front door left open. Several officers, including Det. Forrester and Det. Corso, ran into her apartment uninvited. The officers held § 87(2)(b) [REDACTED] in her kitchen, and refused to let her leave. The officers then entered the apartment’s living room and bedroom. § 87(2)(b) [REDACTED] did not see what the officers did inside of these other rooms.

Det. Forrester, Det. Corso and Sgt. Desir stated that § 87(2)(b) [REDACTED] entered the basement, and was held there while the warrant was executed. A short time later, § 87(2)(b) [REDACTED] called down to the officers to ask them what was going on. Det. Forrester and Det. Corso then went upstairs to speak to her. Det. Forrester stated that as she and § 87(2)(b) [REDACTED] spoke, § 87(2)(b) [REDACTED] walked into the apartment, leading them into her kitchen. The officers then followed. She denied that there was any explicit conversation between them regarding consent before they followed § 87(2)(b) [REDACTED] inside. She denied that § 87(2)(b) [REDACTED] was held in the kitchen, or that officers entered any other areas of the apartment besides the kitchen.

Det. Corso did not recall how the first floor was laid out. He did not recall if there were separate apartments or units on the first floor. He recalled the staircase from the basement opening directly into § 87(2)(b) [REDACTED]’s kitchen. He also stated that § 87(2)(b) [REDACTED] brought the officers into her kitchen and spoke to them there. He denied that officers held her in the kitchen against her will. He did not recall officers entering any other areas upstairs besides the kitchen.

In addition to being provided verbally, consent to enter a location can be provided implicitly through conduct. People v. Brown, 234 A.D.2d 11 (App. Term, 1st Dept. 1996) Absent any consent, an officer may only forcibly enter a residence pursuant to a valid warrant, or in order to address an emergency condition. People v. McBride, 2010 NY Slip Op 3473 (2010). (See Board Review: Legal Reference).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]
In § 87(2)(b) [REDACTED]’s account, the officers entered her apartment without speaking to her. Once they were inside, she was told her to stay in the kitchen while officers searched the rest of the apartment. § 87(2)(g) [REDACTED]

§ 87(2)(g)

In the officers' account, however, the officers only came to the apartment in response to § 87(2)(b)'s request for information. Once the officers came upstairs and engaged her in conversation, § 87(2)(b) walked into her apartment. She maintained the interaction with the officers as she went in, leading them into the kitchen. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Officers entered and searched § 87(2)(b), in Brooklyn.

In addition to Det. Forrester and Det. Corso, § 87(2)(b) alleged that several other officers entered her apartment, led by a heavysset 5'6" black male officer carrying a bunker shield. § 87(2)(b) also stated that there were more than two officers in the apartment, but was not able to provide detailed descriptions of them. The officers did not recall any additional officers who might have accompanied Det. Forrester and Det. Corso upstairs.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **officers unidentified**.

Allegation E –Abuse of Authority: Det. Katrina Forrester threatened to arrest § 87(2)(b)

Allegation F –Abuse of Authority: Det. Katrina Forrester refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that Det. Forrester threatened to arrest her. She also alleged that Det. Forrester did not show a copy of the search warrant, stating instead that a supervisor would show it. § 87(2)(b) was not ultimately shown a copy of the warrant. § 87(2)(b) provided a telephone statement on July 14, 2015 (See Board Review: § 87(2)(b)'s Statement). He was not present at the beginning of the incident, and entered the § 87(2)(b) apartment in the middle of the interaction between his sister and Det. Forrester. § 87(2)(b) did not recall Det. Forrester threatening to arrest § 87(2)(b) but did mention Det. Forrester threatening to contact ACS, a statement that § 87(2)(b) had placed within the context of the threat of arrest. He did not mention any requests by § 87(2)(b) to see the warrant.

Of the officers interviewed, only Det. Forrester and Det. Corso placed themselves in the § 87(2)(b) apartment at the time of the allegations. Det. Forrester and Det. Corso denied that Det. Forrester threatened to arrest § 87(2)(b) or that § 87(2)(b) asked to see a copy of the search warrant at any time.

§ 87(2)(g)

Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Pod:

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date